

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

GILBERT ANTHONY MILAM JR,

Petitioner

VS.

SOPHIA TAGABAN,

Respondent

) Case Number: FDI-10-773668

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: SEE # 7: SET ASIDE OF JUDGMENT FILED ON 12/31/2019

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Gilbert Anthony Milam Jr. and Sophia Tagaban.
- 2) On 11/24/10, Petitioner filed a Petition for Dissolution commencing the case.
- 3) On 12/31/19, Judgment of Dissolution was entered, which incorporates a Marital Settlement Agreement (MSA). The MSA states that the parties were married on 10/7/08 and separated on 11/23/10 for a marriage of 2 years and 1 month. The parties share one child: Janelle (DOB: 7/27/07). The judgment provides for a global settlement of the case.
- 4) On 5/8/26, Respondent filed a Request for Order seeking to set aside the parties' Judgment of Dissolution filed 12/31/19 and \$30,000 in attorney's fees and costs. Respondent seeks to set aside the judgement alleging the MSA was procured by fraud, duress, coercion, perjury, and lack of full financial disclosure. Alternatively, Respondent seeks enforcement of an oral agreement that Petitioner buy Respondent a home valued between 1 -2 million dollars, which Respondent believes was wrongfully omitted from the MSA.

- 5) On 5/8/26, Respondent filed a Request for Judicial Notice of the Marital Settlement Agreement attached as Exhibit A; FL-170 attached as Exhibit B; and FL-141 attached as Exhibit C.
- 6) On 5/8/26, Respondent filed Declaration of Martin Tagaban April.
- 7) On 5/8/26, Respondent filed Declaration of April Martinez.
- 8) On 5/8/26, Respondent filed Declaration of Amanda Jones.
- 9) On 6/18/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for Order attached to which is a Declaration of attorney Rodrigo D. Dias and a Memorandum of Points and Authorities. Petitioner (a) refutes Respondent's allegations of fraud, duress, coercion, perjury, and lack of full financial disclosure; (b) asserts that the MSA is a comprehensive, integrated document reflecting the complete agreement of the parties; and (c) agrees that he discussed the possibility of purchasing a home for Respondent, which he states was not an express commitment or consideration for any of the terms of the divorce settlement.
- 10) On 6/24/26, Respondent filed a Declaration Regarding Clerical Error which states counsel for Respondent inadvertently missed uploading the Memorandum of Points and Authorities.
- 11) On 6/24/26, Respondent filed a Memorandum of Points and Authorities.
- 12) On 6/24/26, Respondent filed an Income and Expense Declaration.

B. Findings and Order

- 1) The Court takes judicial notice of the following documents in the Court docket:
 - a. Declaration Regarding Service of Declaration of Disclosure filed 12/5/19;
 - b. Declaration for Default or Uncontested Dissolution (FL-170) filed 12/26/19; and
 - c. Judgment of Dissolution filed 12/31/19.
- 2) Respondent's request to set aside the parties' Judgment of Dissolution filed 12/31/19 is DENIED as untimely.
- 3) Respondent's request is governed by Family Code section 2122, which provides explicit time restrictions on actions brought on the following relevant grounds as follows:
 - a. Actual fraud: within one year after the date on which Respondent discovered or should have discovered the fraud.
 - b. Perjury in financial disclosures: within one year after the date on which Respondent discovered or should have discovered the perjury.

- c. Duress: within two years after the date of entry of judgment.
 - d. Mistake: within one year after the date of entry of judgment.
 - e. Failure to comply with the disclosure requirements: within one year after the date on which Respondent discovered or should have discovered the failure to comply.
- 4) The Judgment of Dissolution was entered on 12/31/19, which is 6 years, 4 months, and 8 days from 5/8/26 (i.e., the filing date of Respondent's Request for Order).
 - 5) It is undisputed that at the time of the signing of the MSA on 12/5/19, Respondent knew (and discussed with Petitioner and counsel for Petitioner) that any oral agreement regarding Petitioner buying a home for Respondent was not included in the MSA.
 - 6) As such, the Court finds the Family Code section 2122-time restrictions began to run on 12/5/19 (date of signing) or 12/31/19 (date judgment was entered).
 - 7) Respondent argues that the time restrictions began to run on the child's 18th birthday (7/7/25), when Petitioner informed Respondent that he would not purchase her a home and 11/3/25, when Respondent retained counsel who advised her that she was never given proper financial disclosures.
 - 8) The Court is not persuaded by Respondent's arguments as a preponderance of the evidence shows that Petitioner is under no legal obligation under the Family Code to purchase Respondent a home. Further, the Court's file and the terms of the judgment reflect Petitioner's compliance with financial disclosures. For example, Petitioner's Declaration Regarding Service of Declaration of Disclosure was filed on 12/5/19 and both parties signed a Stipulation and Waiver of Final Declaration of Disclosure on 12/5/19. Further, the judgment includes provisions regarding voluntariness of the agreement (section 2.2), warranties regarding community property (section 4.4.1 – 4.4.5), and representation of counsel (section 10).
 - 9) Finally, Family Code section 2123 states, "a judgment may not be set aside simply because the court finds that it was inequitable when made, nor simply because subsequent circumstances caused the division of assets or liabilities to become inequitable, or the support to become inadequate."
 - 10) Respondent's request for Family Code section 2030 attorney's fees is DENIED as improperly plead.

1 11) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

2 12) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
3 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
4 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
5 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
6 proposed order after hearing directly to the court. Failure to submit the order after hearing within
7 10 days may allow the other party to prepare a proposed order and submit it to the court in
8 accordance with CA Rules of Court, Rule 5.125(d).